

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

MELISSA FRANCIS and JUSTIN TABASUM,

Plaintiffs,

-against-

CITY OF NEW YORK, POLICE OFFICER
LEON, Shield No. 17608, and POLICE
OFFICERS JOHN DOES # 1-10 (names and
numbers of whom are unknown at present),

Defendants.

SUMMONS

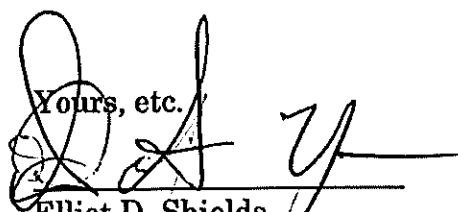
Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 17, 2021

Yours, etc.


Elliot D. Shields
Roth & Roth, LLP
Counsel for Plaintiffs
192 Lexington Avenue
Suite 802
New York, New York 10016
(212) 425 1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY
10007
POLICE OFFICER LEON, Shield No. 17608, NYPD – Transit District 32,
960 Carroll St, Brooklyn, NY 11225

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numbers of whom are unknown at present),

Defendants.

INDEX NO:**VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiffs MELISSA FRANCIS and JUSTIN TABASUM, by their attorneys,
ROTH & ROTH LLP, complaining of the Defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiffs MELISSA FRANCIS and JUSTIN TABASUM bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of their civil rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York.

2. On the evening of February 23, 2020, Plaintiff JUSTIN TABASUM took his girlfriend, Plaintiff MELISSA FRANCIS on a date in Midtown Manhattan near Times Square.

3. After their date, at approximately midnight, the couple got on the downtown 2/3 subway train at the Times Square station to head back to their homes

in Brooklyn. The couple cuddled up together on the train, and Ms. FRANCIS fell asleep on Mr. TABASUM's shoulder.

4. Suddenly, at approximately 1:00 a.m., after the train pulled into the Atlantic Avenue subway station in Brooklyn, approximately 15 Defendant NYPD officers rushed onto the train and immediately seized Mr. TABASUM and physically removed him from the train to the platform. Before seizing Mr. TABASUM, the Defendant officers provided no explanation whatsoever.

5. Ms. Francis asked why the Defendant NYPD officers had seized Mr. TABASUM and attempted to video record them with her cell phone. The Defendant NYPD officers retaliated against her by unlawfully seizing her, placing handcuffs on her wrists in an unreasonably tight manner, and arresting and detaining her for an extended period.

6. Defendants lacked an objective basis to believe they had reasonable or probable cause to stop, seize, frisk search and arrest Plaintiffs.

7. Eventually, Defendants explained that they had seized Mr. TABASUM because they had received a report of a "black man with a gun." Defendants then removed the handcuffs from Plaintiffs' wrists and permitted them to leave the station without charging them with a crime or criminal violation.

8. As a result of being racially profiled, unlawfully stopped, questioned, frisked, seized, assaulted, battered, handcuffed and arrested, forcibly removed from the subway train, and searched and detained without reasonable or probable cause

or any other legal justification, Plaintiffs sustained physical, psychological and emotional trauma, and economic damages.

PARTIES

9. Plaintiff, MELISSA FRANCIS, is a resident of Brooklyn, New York.

10. Plaintiff, JUSTIN TABASUM, is a resident of Brooklyn, New York.

11. Defendant CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Police Officer ("P.O.") LEON ("LEON") (Shield # 17608) and JOHN DOES # 1-15 (collectively "defendant NYPD officers") are and were at all times relevant herein, officers, employees and agents of the NYPD. The defendant police officers are being sued in their individual and official capacities.

13. The defendant NYPD officers are being sued in their individual and official capacities.

14. At all times relevant herein, the individual NYPD defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf

of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

15. The individual NYPD defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiffs' rights.

16. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

17. Plaintiffs, in furtherance of their State causes of action, filed Notices of Claim against the CITY OF NEW YORK and/or the NEW YORK CITY POLICE DEPARTMENT. The City held 50-h hearings of Plaintiffs on August 26, 2020.

18. More than thirty (30) days have elapsed since said Notices of Claim were filed and the CITY OF NEW YORK and/or the NEW YORK CITY POLICE DEPARTMENT, has failed to pay or adjust the claims.

19. This action is being brought within a year and 90 days of the event giving rise to Plaintiffs' State causes of action.

STATEMENT OF FACTS

20. On February 24, 2020, at approximately 1:00 a.m., Plaintiffs were seated on the 2/3 downtown subway train while it was stopped at the Atlantic Avenue Station in Brooklyn, New York.

21. Plaintiffs were seated passively and were conducting themselves lawfully on said subway train.

22. Suddenly fifteen (15) NYPD Officers boarded the train and forcibly seized and Plaintiff JUSTIN TABASUM without explanation.

23. Defendants physically seized Mr. TABASUM and escorted him off the train onto the platform.

24. Defendants then placed handcuffs on Mr. TABASUM's wrists without cause or legal justification.

25. Plaintiff MELISSA FRANCIS asked the NYPD defendants why they had seized Mr. TABASUM who refused to answer or explain why they were arresting him.

26. Ms. FRANCIS attempted to video record the officers after they physically seized Mr. TABASUM.

27. In retaliation for Ms. FRANCIS attempting to ask them questions and video record them, Defendants unlawfully seized and arrested Ms. FRANCIS and removed her from the train.

28. Defendants placed handcuffs on Ms. FRANCIS' wrists in an unreasonably tight manner.

29. Defendants in the course of restraining Ms. FRANCIS' twisted her arms and injured her using excessive force.

30. Ms. FRANCIS complained that the handcuffs were too tight and repeatedly asked for the handcuffs to be loosened, but the Defendant NYPD officers refused.

31. As a result of being handcuffed in an unreasonably tight manner, Ms. Francis sustained serious and permanent injuries to her wrists.

32. Ms. FRANCIS did not resist arrest and complied with all of the officers' demands.

33. Plaintiff, JUSTIN TABASUM, did not resist arrest and complied with all of the officers' demands.

34. Prior to seizing Mr. TABASUM, the Defendant NYPD officers did not explain why he was being seized, handcuffed, arrested and detained.

35. After being detained on the subway platform for an extended period of time, the Defendant NYPD officers removed the handcuffs from their wrists and allowed Ms. FRANCIS and Mr. TABASUM, to leave the station.

36. The Defendant NYPD officers did not issue Mr. TABASUM or Ms. FRANCIS a summons, DAT or any other criminal process.

37. Mr. TABASUM and Ms. FRANCIS were never charged with any crime or criminal violation.

38. When the Defendant NYPD officers released Plaintiffs, they explained that Mr. TABASUM was seized because they had received a report of a "black man with a gun."

39. Upon information and belief, Plaintiff, JUSTIN TABASUM, did not match the description provided in the complaint of a “black man with a gun” other than being an Black male.

40. At no time did the NYPD defendants have reasonable or probable cause to believe that Mr. TABASUM was the “black man” who was alleged to be in possession of a gun.

41. At no time did Plaintiffs commit any crime or violation.

42. At no time did the NYPD defendants have reasonable or probable cause to believe that Plaintiffs had committed any crime or violation.

43. The NYPD defendants lacked reasonable or probable cause to stop, seize, arrest and detain Plaintiffs.

44. Some of the Defendant NYPD Officers observed the violation of Plaintiffs’ rights under the Constitutions of the United States and the State of New York, and state common law, but did nothing to prevent the unlawful seizure, search, false arrest, assault and battery of plaintiffs.

45. The unlawful stop, unlawful search, false arrest, and false imprisonment, assault and battery of Plaintiffs, MELISSA FRANCIS and JUSTIN TABASUM by the Defendant NYPD Officers caused them to sustain physical, psychological and emotional trauma, and economic damages.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

46. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. All of the aforementioned acts of the Defendant CITY, and the Defendant NYPD Officers and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

48. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being unlawfully searched by the police;
- d. To freedom of speech and expression; and
- e. To freedom to record the police in a public place;

49. All of the aforementioned acts deprived Plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

50. The acts complained of were carried out by the aforementioned Defendant NYPD Officers in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

51. The acts complained of were carried out by the aforementioned Defendant NYPD Officers in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

52. As a result of the above constitutionally impermissible conduct, Plaintiffs were caused to suffer economic injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to their reputation and standing within their community.

53. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

54. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

55. One or more of the Defendant NYPD Officers, including but not limited to P.O. LEON and JOHN DOES # 1-15 handcuffed and arrested Plaintiffs.

56. These arrests were made in the absence of a warrant.

57. These arrests were made in the absence of probable cause.

58. The Defendant NYPD Officers arrested Plaintiffs without having exigent circumstances for doing so.

59. There was no other authority for the arrest of Plaintiffs.

60. Plaintiffs were conscious of this arrest.

61. Plaintiffs did not consent to this arrest.

62. As a result of the above constitutionally impermissible conduct, Plaintiffs were caused to suffer economic injuries, violation of their civil rights,

emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to their reputation and standing within their community.

63. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CLAIM FOR RELIEF
FALSE ARREST UNDER NEW YORK STATE LAW

64. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

65. As a result of the aforesaid conduct by the Defendant CITY and the Defendant NYPD Officers, Plaintiffs were unlawfully detained and confined.

66. The Defendant NYPD Officers—in performance of their duties with powers and authorities designated upon them by the Defendant CITY—intentionally confined Plaintiffs.

67. Plaintiffs were at all times consciously aware of their confinement by the Defendant NYPD Officers.

68. At no point throughout Plaintiffs unlawful detention and confinement by the Defendant NYPD Officers did Plaintiffs' consent to said confinement.

69. At no point throughout Plaintiffs unlawful detention and confinement by the Defendant NYPD Officers were the actions of the Defendant NYPD Officers otherwise privileged.

70. Defendant City is also liable to Plaintiffs on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant NYPD Officers as described herein.

71. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed.

72. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

73. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

74. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

75. Defendants lacked reasonable or probable cause to search Plaintiffs.

76. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the United States Constitution and the State of New York.

77. As a result of the above constitutionally impermissible conduct, Plaintiffs were caused to suffer economic injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to their reputation and standing within their community.

78. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CLAIM FOR RELIEF
FAILURE TO INTERVENE under 42 U.S.C. § 1983

79. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

80. The Defendant NYPD Officers all had an affirmative duty to intervene on Plaintiffs' behalf to prevent the violation of their constitutional rights by the other Defendant NYPD Officers.

81. The defendant police officers failed to intervene on Plaintiffs' behalf despite having had realistic opportunities to do so.

82. The Defendant NYPD Officers failed to intervene on Plaintiffs' behalf despite having substantially contributed to the circumstances within which Plaintiffs' rights were violated by their affirmative conduct.

83. P.O. LEON failed to intervene on Plaintiffs' behalf to prevent and/or halt the violation of their rights by the other officers.

84. JOHN DOES # 1–15 failed to intervene on Plaintiffs' behalf to prevent and/or halt the violation of their rights by P.O. LEON.

85. As a result of the aforementioned conduct of the Defendant NYPD Officers, Plaintiffs' constitutional rights were violated.

86. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed.

87. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**SIXTH CLAIM FOR RELIEF
RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION UNDER
42 U.S.C. § 1983**

88. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

89. The Defendant NYPD officers, including but not limited to P.O. LEON and JOHN DOES # 1–15 arrested Plaintiffs in order to retaliate against them for questioning the seizure and detainment.

90. The Defendant NYPD officers, including but not limited to P.O. LEON and JOHN DOES # 1–15 arrested Plaintiff MELISSA FRANCIS in order to retaliate against her for attempting to video record their seizure, arrest and detention of Plaintiff JUSTIN TABASUM.

91. The Defendant NYPD officers, including but not limited to P.O. LEON and JOHN DOES # 1–15 arrested Plaintiffs in order to retaliate against them and to chill and deter them from further First Amendment protected activity.

92. Plaintiffs were not engaged in any illegal activity of any kind or sort when the Defendants stopped and arrested them.

93. The actions of the defendant NYPD officers heretofore described were designed to and did cause severe psychological and emotional distress in direct retaliation for Plaintiffs' exercise of their civil and constitutional rights of free speech, free expression and to question the detainment in a public place as guaranteed by First and Fourteenth Amendments to the United States Constitution.

94. As a result of the forgoing, Plaintiffs are entitled to compensatory damages and punitive damages against the Defendants in amounts to be determined at trial.

95. As a result of the above constitutionally impermissible conduct, Plaintiffs were caused to suffer personal injuries, physical injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

96. As a result of Defendants' impermissible conduct, Plaintiffs demand judgment against Defendants in a sum of money to be determined at trial.

SEVENTH CLAIM FOR RELIEF
VIOLATION OF THE NEW YORK RIGHT TO MONITOR ACT

97. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

98. The Defendant NYPD officers, including but not limited to P.O. LEON and JOHN DOES # 1–15 arrested Plaintiffs in order to retaliate against them for questioning their seizure and detainment.

99. The Defendant NYPD officers, including but not limited to P.O. LEON and JOHN DOES # 1–15 arrested Plaintiff MELISSA TABASUM in order to retaliate against her for video recording them seize and detain Plaintiff JUSTIN TABASUM.

100. The Defendant NYPD officers, including but not limited to P.O. LEON and JOHN DOES # 1–15 arrested Plaintiffs in order to retaliate against them and to chill and deter them from further First Amendment protected activity.

101. The actions of the Defendant NYPD officers violated the plain language of the New York Right to Monitor Act.

102. As a result of the above statutorily impermissible conduct, Plaintiffs were caused to suffer personal injuries, physical injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

103. As a result of Defendants' impermissible conduct, Plaintiffs demand judgment against Defendants in a sum of money to be determined at trial.

**EIGHTH CLAIM FOR RELIEF
NEGLIGENCE UNDER NEW YORK STATE LAW
(AGAINST THE CITY)**

104. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

105. Defendant City was negligent in the hiring and retention of the Defendant NYPD Officers as follows:

A. Upon information and belief, Defendant City failed to use reasonable care in the hiring and retention of the Defendant NYPD Officers who conducted and participated in the acts of subjecting Plaintiffs to an unlawful stop, unlawful seizure, unlawful search, false arrest, false imprisonment, assault and battery and violation of their constitutional rights in the manners described herein.

B. Defendant City knew, or should have known in the exercise of reasonable care, the propensities of the aforesaid Defendant NYPD Officers to engage in the wrongful conduct heretofore alleged in this complaint.

106. Defendant the City was negligent in the training and supervision of the Defendant NYPD Officers as follows:

A. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding determining whether probable cause exists to stop and arrest an individual based on a vague complaint, and to ensure that the officers were not engaging

in racial profiling of young black men; and to prevent the Defendant NYPD Officers from engaging in the wrongful conduct heretofore alleged in this complaint.

- B. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding citizen's First Amendment right to record police performing their official duties in a public place, and to prevent the defendant police officers from engaging in the wrongful conduct heretofore alleged in this complaint.

107. Defendant the City was negligent in failing to discipline and take corrective action against the Defendant NYPD Officers as follows:

- A. Defendant the City knew or should have known that Defendant LEON and JOHN DOES # 1-15 had repeatedly engaged in racial profiling and unlawfully stopped, frisked, detained and arrested young black men without reasonable or probable cause; and had unlawfully arrested individuals in retaliation for them lawfully video recording their conduct, but failed to reprimanded, suspended, retrain, or otherwise discipline LEON and JOHN DOES # 1-15.

108. Defendant City is also liable to Plaintiffs on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant NYPD Officers as described herein.

109. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed.

110. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

NINTH CLAIM FOR RELIEF
ASSAULT UNDER NEW YORK STATE LAW

111. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

112. Defendants rushed upon Plaintiff JUSTIN TABASUM, grabbed his body and hands, and placed handcuffs on his wrists, and physically removed him from the subway train, despite not having reasonable or probable cause for his arrest.

113. Defendants seized Plaintiff MELISSA FRANCIS, grabbed her body and hands, placed handcuffs on her wrists in an unreasonably tight manner, and physically removed her from the subway train, despite not having reasonable or probable cause for her arrest.

114. By the aforescribed conduct, the Defendant NYPD officers their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and

intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, and that such acts caused apprehension of such contact in the Plaintiffs.

115. The Defendant NYPD officers were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

116. The Defendant CITY, as the employer of Defendant NYPD Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed.

118. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

TENTH CLAIM FOR RELIEF
BATTERY UNDER NEW YORK STATE LAW

119. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

120. Defendants rushed upon Plaintiff JUSTIN TABASUM, grabbed his body and hands, and placed handcuffs on his wrists, and physically removed him from the subway train, despite not having reasonable or probable cause for his arrest.

121. Defendants seized Plaintiff MELISSA FRANCIS, grabbed her body and hands, placed handcuffs on her wrists in an unreasonably tight manner, and physically removed her from the subway train, despite not having reasonable or probable cause for her arrest.

122. By the aforescribed conduct, the Defendant NYPD officers, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner seized Plaintiffs and handcuffed them without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

123. The Defendant NYPD officers were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

124. The Defendant CITY, as the employer of Defendant NYPD Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed.

126. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

ELEVENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

127. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

128. The Defendant NYPD officers roughly seized and handcuffed Plaintiffs without probable cause for their arrest.

129. Defendants rushed upon Plaintiff JUSTIN TABASUM, grabbed his body and hands, and placed handcuffs on his wrists, and physically removed him from the subway train, despite not having reasonable or probable cause for his arrest.

130. Defendants seized Plaintiff MELISSA FRANCIS, grabbed her body and hands, placed handcuffs on her wrists in an unreasonably tight manner, and physically removed her from the subway train, despite not having reasonable or probable cause for her arrest.

131. The level of force employed by the Defendant NYPD officers against plaintiffs was objectively unreasonable.

132. The force employed by the Defendant NYPD officers against plaintiff did not advance any proper governmental objective.

133. As a result of the aforementioned conduct of the Defendant NYPD Officers, plaintiffs suffered and sustained physical injuries.

134. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed.

135. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

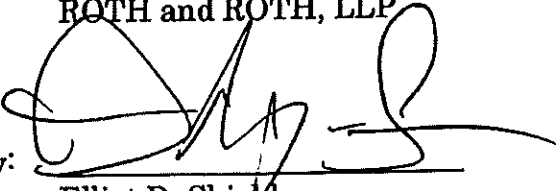
WHEREFORE, Plaintiffs demand judgment against all the Defendants on each cause of action set forth above in an amount which exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action, together with the interest, costs, and disbursements of this action, and attorney's fees

and costs pursuant to 42 U.S.C. § 1988.

Dated: New York, New York

May 17, 2021

ROTH and ROTH, LLP

By: 

Elliot D. Shields
Roth and Roth, LLP
Counsel for Plaintiff
192 Lexington Avenue, Suite 802
New York, New York 10016
(212) 425 1020

TO: City of New York, Corporation Counsel
100 Church Street
New York, New York 10007

POLICE OFFICER LEON, Shield No. 17608
NYPD - Transit District 32
960 Carroll Street
Brooklyn, New York 11225

ATTORNEY'S VERIFICATION

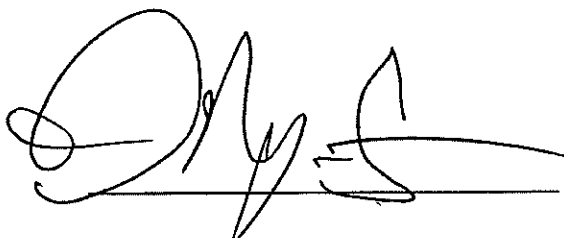
ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with Roth and Roth LLP, attorneys for the plaintiff herein, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is being made by me is because the Plaintiff does not reside in the County where I maintain my office.

DATED: New York, New York

May 17, 2021



ELLIOT SHIELDS

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MELISSA FRANCIS and JUSTIN TABASUM,

Plaintiffs,

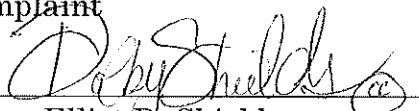
-against-

CITY OF NEW YORK, POLICE OFFICER LEON, Shield No. 17608, and POLICE
OFFICERS JOHN DOES # 1-10 (names and numbers of whom are unknown at present),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

The below signature attests to the following papers: Summons and Verified
Complaint

By: 
Elliot D. Shields

ROTH & ROTH, LLP
Attorneys for Plaintiffs
192 Lexington Avenue, Suite 802
New York, NY 10016
(212) 425-1020